



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36063131

Date: JAN. 21, 2025

Appeal of California Service Center Decision

Form I-129, Petition for Nonimmigrant Worker (H-1B)

The Petitioner seeks to temporarily employ the Beneficiary under the H-1B nonimmigrant classification for specialty occupations. *See* Immigration and Nationality Act (the Act) section 101(a)(15)(H)(i)(b), 8 U.S.C. § 1101(a)(15)(H)(i)(b). The H-1B program allows a U.S. employer to file a petition with U.S. Citizenship and Immigration Services (USCIS) to temporarily employ a qualified foreign worker in a position that requires both: (a) the theoretical and practical application of a body of highly specialized knowledge; and (b) the attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) as a minimum prerequisite for entry into the position.

The California Service Center Director denied the Form I-129, Petition for a Nonimmigrant Worker (petition), concluding the record did not establish that the offered position qualified as a specialty occupation. The matter is now before us on appeal under 8 C.F.R. § 103.3. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. Section 291 of the Act; *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will sustain the appeal.

The Petitioner filed the U.S. Department of Labor ETA Form 9035 & 9035E, Labor Condition Application for Nonimmigrant Workers under a subset of the Data Scientists standard occupational classificational code. The organization initially offered a job description and provided additional information relating to the position's duties in the response to the Director's request for evidence. And to qualify for the position, the Petitioner indicated that it required a bachelor's degree in computer science, data science, or a closely related quantitative analytical field.

In the denial, the Director indicated the provided duties did not require a qualifying degree to perform them. But the Director did not offer additional details to explain this particular statement. They also focused on other aspects of the Petitioner's position requirements in the denial but made no mention of this as a possible adverse element in the request for evidence. We observe the Director did not factor all of the Petitioner's position qualifications into their analysis. We further note the Director concluded, and the Petitioner contests, that the petitioning organization accepts a wide spectrum of fields as a minimum requirement for entry to the position. The Director's conclusion relating to this wide spectrum of fields also influenced their analysis of the regulatory criteria at 8 C.F.R.

§ 214.2(h)(4)(iii)(A), but that determination was not accurate. Those collective actions constitute an error on the Director's part.

Additionally, the Director did not discuss the Petitioner's claims under 8 C.F.R. § 214.2(h)(4)(iii)(A)(4), and it is under that criterion that the petitioning organization has satisfied the regulatory requirements. We conclude that the record establishes that the nature of the specific duties is so specialized and complex that the knowledge required to perform them is usually associated with the attainment of a bachelor's or higher degree in a specific specialty, or its equivalent. The Petitioner's position description, when reviewed within the broader context of its operations, depicts one that includes duties sufficiently complex that a qualifying degree would be required to perform them. The record in this particular case preponderantly establishes how the specified fields are directly related to the duties and responsibilities of this particular position. Moreover, the totality of the evidence establishes that the Beneficiary is qualified to perform the duties of the offered position.

Further, the Petitioner has established that the offered position qualifies for classification as a specialty occupation as defined by section 214(i)(1) of the Act, 8 U.S.C. § 1184(i)(1), and 8 C.F.R. § 214.2(h)(4)(ii).

ORDER: The appeal is sustained.